

Court No. - 21

Case :- WRIT - C No. - 3773 of 2012

Petitioner :- Nandu Engineering Works And Another

Respondent :- State Of U.P. Thru' Its Secy Deptt Of Power And Others

Petitioner Counsel :- Anurag Khanna

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ashok Bhushan, J.

Hon'ble Mrs. Sunita Agarwal, J.

As prayed put up as fresh on Tuesday i.e. 24.1.2012.

Order Date :- 19.1.2012

KCS

Court No. - 21

Case :- WRIT - C No. - 3773 of 2012

Petitioner :- Nandu Engineering Works And Another

Respondent :- State Of U.P. Thru' Its Secy Deptt Of Power And Others

Petitioner Counsel :- Anurag Khanna

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ashok Bhushan, J.

Hon'ble Mrs. Sunita Agarwal, J.

As prayed, put up on Monday as fresh.

Order Date :- 24.1.2012

P.P.

Court No. - 21

Case :- WRIT - C No. - 3773 of 2012

Petitioner :- Nandu Engineering Works And Another

Respondent :- State Of U.P. Thru' Its Secy Deptt Of Power And Others

Petitioner Counsel :- Anurag Khanna

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ashok Bhushan, J.

Hon'ble Mrs. Sunita Agarwal, J.

As prayed by learned counsel for the respondents, put up day after tomorrow, the 1st of February, 2012 as fresh.

Order Date :- 30.1.2012

Rakesh

Court No. - 21

Case :- WRIT - C No. - 3773 of 2012

Petitioner :- Nandu Engineering Works And Another

Respondent :- State Of U.P. Thru' Its Secy Deptt Of Power And Others

Petitioner Counsel :- Anurag Khanna

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ashok Bhushan, J.

Hon'ble Mrs. Sunita Agarwal, J.

As prayed, put up on Monday i.e. 13/2/2012, as fresh.

Order Date :- 9.2.2012

SB

Court No. - 21

Case :- WRIT - C No. - 3773 of 2012

Petitioner :- Nandu Engineering Works And Another

Respondent :- State Of U.P. Thru' Its Secy Deptt Of Power And Others

Petitioner Counsel :- Anurag Khanna

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ashok Bhushan, J.

Hon'ble Surendra Kumar, J.

Put up tomorrow as fresh.

Order Date :- 13.2.2012

SB

Court No. - 21

Case :- WRIT - C No. - 3773 of 2012

Petitioner :- Nandu Engineering Works And Another

Respondent :- State Of U.P. Thru' Its Secy Deptt Of Power And Others

Petitioner Counsel :- Anurag Khanna

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ashok Bhushan, J.

Hon'ble Mrs. Sunita Agarwal, J.

As prayed, put up on 16.2.2012 as fresh.

Order Date :- 14.2.2012

P.P.

Court No. - 21

Case :- WRIT - C No. - 3773 of 2012

Petitioner :- Nandu Engineering Works And Another

Respondent :- State Of U.P. Thru' Its Secy Deptt Of Power And Others

Petitioner Counsel :- Anurag Khanna

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ashok Bhushan, J.

Hon'ble Vijay Prakash Pathak, J.

Put up on 22/2/2012, as fresh.

Order Date :- 17.2.2012

SB

Court No. - 21

Case :- WRIT - C No. - 3773 of 2012

Petitioner :- Nandu Engineering Works And Another

Respondent :- State Of U.P. Thru' Its Secy Deptt Of Power And Others

Petitioner Counsel :- Anurag Khanna

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ashok Bhushan, J.

Hon'ble Mrs. Sunita Agarwal, J.

Heard learned counsel for the petitioner and Shri Pankaj Kumar Shukla, learned counsel appearing for the respondents.

Learned counsel for the petitioner submits that the petitioner had earlier came to this Court challenging the assessment made by the respondents which writ petition was disposed of by this Court permitting the petitioner to file an objection which was directed to be considered. It is submitted that after order of this Court dated 1.8.2011 again the assessment has been made amounting to Rs. 99,60,904/-

Learned counsel for the petitioner submits that the calculation which has been made by the respondents is not in accordance with the provisions of clause 8.2 of the the U.P. Electricity Supply Code 2005 and by assessing such exorbitant amount the remedy of the filing the appeal has also made onerous since the petitioner is required to deposit 50% of the amount for filing the appeal.

Submissions made by learned counsel for the petitioner needs consideration.

Let a counter affidavit be filed within three weeks.

List this case in week commencing 19.3.2012.

Learned counsel for the petitioner submits that after filing the present writ petition the electricity connection has been disconnected.

We provide that subject to payment of Rs. 10.00 lacs with respondent no.3 and subject to the deposit of current bill as and when due, the petitioner's supply shall be restored.

Order Date :- 22.2.2012

R

Court No. - 32

Case :- WRIT - C No. - 3773 of 2012

Petitioner :- Nandu Engineering Works And Another

Respondent :- State Of U.P. Thru' Its Secy Deptt Of Power And Others

Petitioner Counsel :- Anurag Khanna

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ashok Bhushan, J.

Hon'ble Mrs. Sunita Agarwal, J.

This is an application praying for correction of the order dated 22.2.2012.

In the last paragraph of the order following is ordered to be added after the words "shall be restored":-

"and no coercive action shall be taken against the petitioner in pursuance of the order dated 20.12.2011".

The application is disposed of finally.

Order Date :- 6.4.2012

R

Court No. - 21

Case :- WRIT - C No. - 3773 of 2012

Petitioner :- Nandu Engineering Works And Another

Respondent :- State Of U.P. Thru' Its Secy Deptt Of Power And Others

Petitioner Counsel :- Anurag Khanna

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble R.K. Agrawal, J.

Hon'ble Mushaffey Ahmad, J.

As prayed counter affidavit be filed within three weeks and no more. List thereafter.

Order Date :- 24.4.2012

samz

Court No. - 21

Case :- WRIT - C No. - 3773 of 2012

Petitioner :- Nandu Engineering Works And Another

Respondent :- State Of U.P. Thru' Its Secy Deptt Of Power And Others

Petitioner Counsel :- Anurag Khanna

Respondent Counsel :- C.S.C.,Nripendra Mishra,Pankaj Kumar Shukla

Hon'ble Yatindra Singh,J.

Hon'ble Mahendra Dayal,J.

The counsel for the respondents states that appeal lies against the impugned order.

The earlier writ petition was decided by a bench presided over by Hon.Ashok Bhushan, J. It will be appropriate that this writ petition may also be decided a bench presided over by his Lordship.

List this case before the appropriate bench, after obtaining nomination from Hon'ble the Acting Chief Justice.

On the next date, it will not be necessary to show the name of Shri Pankaj Kumar Shukla as counsel for the respondents.

Order Date :- 3.9.2012

vs

Court No. - 37

Case :- WRIT - C No. - 3773 of 2012

Petitioner :- Nandu Engineering Works And Another

Respondent :- State Of U.P. Thru' Its Secy Deptt Of Power And Others

Petitioner Counsel :- Anurag Khanna

Respondent Counsel :- C.S.C.,Nripendra Mishra

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Sri Nripendra Mishra, learned counsel for the respondent is granted three weeks further time to file counter affidavit. List thereafter.

Order Date :- 16.1.2013

LA/-

Court No. - 38

Case :- WRIT - C No. - 3773 of 2012

Petitioner :- Nandu Engineering Works And Another

Respondent :- State Of U.P. Thru' Its Secy Deptt Of Power
And Others

Counsel for Petitioner :- Anurag Khanna

Counsel for Respondent :- C.S.C., Chandan
Agarwal, Nripendra Mishra

Hon'ble Ran Vijai Singh, J.

Hon'ble Daya Shankar Tripathi, J.

Request has been made on behalf of learned counsel for the
petitioners for passing over the case.

The case is being passed over for the day.

Order Date :- 22.11.2016

Pratima

Court No. - 32

Case :- WRIT - C No. - 3773 of 2012

Petitioner :- Nandu Engineering Works And Another

Respondent :- State Of U.P. Thru' Its Secy Deptt Of Power And Others

Counsel for Petitioner :- Anurag Khanna, Syed Fahim Ahmed

Counsel for Respondent :- C.S.C., Chandan Agarwal, Nripendra Mishra

Hon'ble Arvind Kumar Tripathi, J.

Hon'ble Salil Kumar Rai, J.

Pass over on the illness slip of Mr. Syed Fahim Ahmed, of the learned counsel for the petitioners.

List in the next cause list.

Order Date :- 12.12.2017

Pramod

Court No. - 32

Case :- WRIT - C No. - 3773 of 2012

Petitioner :- Nandu Engineering Works And Another

Respondent :- State Of U.P. Thru' Its Secy Deptt Of Power And Others

Counsel for Petitioner :- Anurag Khanna, Syed Fahim Ahmed

Counsel for Respondent :- C.S.C., Chandan Agarwal, Nripendra Mishra

Hon'ble Arvind Kumar Tripathi, J.

Hon'ble Salil Kumar Rai, J.

Passed over on the illness slip of Shri Syed Fahim Ahmed, one of the counsel for the petitioner.

List again in the next cause list.

Order Date :- 21.12.2017

Rk

Court No. - 38

Case :- WRIT - C No. - 3773 of 2012

Petitioner :- Nandu Engineering Works And Another

Respondent :- State Of U.P. Thru' Its Secy Deptt Of Power And Others

Counsel for Petitioner :- Anurag Khanna, Syed Fahim Ahmed

Counsel for Respondent :- C.S.C., Chandan Agarwal, Nripendra Mishra

Hon'ble Ran Vijai Singh, J.

Hon'ble Mukhtar Ahmad, J.

On the request made on behalf of Sri Anurag Khanna, learned Senior Advocate, case is being passed over for the day.

Order Date :- 8.1.2018

Shahid